

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #08	CCRB Case #: 201708444	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 10/07/2017 4:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/7/2019	Precinct: 10
Date/Time CV Reported Sat, 10/07/2017 4:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/12/2017 11:10 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vincent Fontana	03556	931673	010 PCT
2. Officers			010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Caster	17276	952554	010 PCT
2. POF Tardasha Crandell	19114	952621	010 PCT
3. POM Johnpaul Giacona	09996	952778	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Vincent Fontana	Abuse: Sergeant Vincent Fontana stopped § 87(2)(b)	A . Complaint Withdrawn
B . Officers	Abuse: Officers stopped § 87(2)(b)	B . Complaint Withdrawn

Case Summary

On October 7, 2017, § 87(2)(b) filed the following complaint by phone with IAB, generating original log number 2017-38902. The CCRB received the complaint on October 12, 2017.

On October 17, 2017, the undersigned contacted § 87(2)(b) by phone. § 87(2)(b) did not think she was interested in pursuing a CCRB complaint, and initially said the case should be closed. However, she wanted to call IAB to follow up first before making a final decision. On October 23, the undersigned called § 87(2)(b) again. She had not yet called IAB, did not have time to talk, and said she would call the undersigned back. § 87(2)(b) did not call back, and the undersigned left her two voicemails before reaching her by phone again on November 1. During that conversation, which can be found in the recording attached to IA #17, at 00:35, § 87(2)(b) said that the case should be closed. She agreed to withdraw the complaint, as she was busy, was returning to Italy soon, and had no interest in pursuing it. She confirmed that she was withdrawing entirely of her own free will, and that no one at the CCRB or NYPD coerced her into doing so. She agreed to sign and return a complaint withdrawal letter. IM Rosen later reviewed this recording and confirmed that it adhered to agency standards. The undersigned mailed a withdrawal letter to § 87(2)(b) that same day. Therefore it is recommended that **Allegations A and B** be closed as **complaint withdrawn**.

Squad: 8

Investigator:	_____	<u>Daniel Giansante</u>	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date